جامعة خليفة
Khalifa University

BLANKET PURCHASE CONTRACT (BPC)

1. CONTRACT DETAILS

BPC No:	C403/P8472108095/2022/MAB
BPC Title:	Blanket order agreement for ProQuest Coutts 2022-2024

2. SCHEDULE

Date of Issue:	19.04.2022
Effective Date:	01.01.2022
End Date:	31.12.2024

3. CONTRACTOR/CONSULTANT DETAILS

Contractor:	PROQUEST LLC
Address:	PO Box 502568 Dubai - UAE
Email:	Tawhid.Alsharif@proquest.com

4. BRIEF SCOPE

4.1 Blanket order agreement for ProQuest Coutts for 3 years

5. TERMS AND CONDITIONS

5.1 The Terms & Conditions of this BPC will apply as printed over leaf. The CONTRACTOR shall in no event perform work of a value in excess of the amount stated herein without authorization from the Khalifa University.

6. ATTACHMENTS

6.1 Annexure A

7. PRICING SCHEDULE

7.1 Total Amount	:	**USD 380,640.00 (excl. VAT)**
7.2 Total Amount (in Words)	:	**United State Dollars Three Hundred Eighty Thousand Six Hundred Forty Only**

8. CONTACT PERSONNEL

Khalifa University of Science and Technology		**PROQUEST LLC**	
Name:	Alia Al-Harrasi	Name:	Tawhid AlSharif
Title:	Librarian	Title:	Senior Account Manager
Tel/e-mail:	alia.alharrasi@ku.ac.ae	Tel/e-mail:	Tawhid.Alsharif@proquest.com

9. PAYMENT TERMS

9.1 Payment to be made on actual delivery of services and confirmed by the End User.

10. DOCUMENT PREPARED BY

Prepared by:	Mariam Al Blooshi	Reviewed by:	Mohammed Al Qassim

11. SIGNED BY

Khalifa University of Science and Technology		**PROQUEST LLC**	
Name:	Saeed Al Mahri	Name:	Tawhid ALsharif
Title:	Acting VP, Procurement & Contracts	Title:	S. Account Manager
Signature:		Signature:	ProQuest LLC
Date:		Date:	

جامعة خليفة
Khalifa University
Procurement & Contracts Dept.

The Abu Dhabi, United Arab Emirates, Tel: (02) 6075100,
Website: http://www.ku.ac.ae

Signed by:Abdulla Al Hefeiti
Signed at:2022-04-26 23:58:06 +04:00
Reason:I approve this document. Abdulla

جامعة خليفة
Khalifa University

TERMS AND CONDITIONS FOR BLANKET PURCHASE CONTRACT

1. **SUMMARY**

1.1. This Blanket Purchase CONTRACT (BPC) valid for 3 years from the date of the CONTRACT, establishing unit price, delivery and commercial terms within the validity of the CONTRACT. KU shall confirm the supply for specific requirements as and when required, which the Supplier shall execute promptly within the terms of the CONTRACT. The delivery shall be made in accordance with the items and unit prices mentioned in Annexure A.

1.2. For avoidance of doubt, the quantities which the Supplier is required to have available for delivery to KU during the validity period of the blanket purchase CONTRACT are estimate only, and nothing is contained in blanket purchase CONTRACT terms and conditions which will oblige KU to place any orders whether for the amounts estimated or for any other quantities.

2. **PAYMENT TERMS**

2.1. Payment terms shall be net 30 days from receipt of correct invoice. Supplier shall submit the original invoice directly to the KHALIFA UNIVERSITY (KU) finance department along with all supporting documentation.

2.2. Invoice along with supporting documents shall be forwarded to the following:

Finance Department,
3rd Floor, Room No. 308
Habshan Building, SAN Campus
Khalifa University, P.O.Box 127788
Abu Dhabi, U.A.E

3. **PERFORMANCE BOND**

3.1. Supplier shall provide within ten days from date of blanket purchase CONTRACT a performance bond in the form of a bank guarantee equal to ten percent (10%) of the blanket purchase CONTRACT value representing amount equivalent to **USD 380,640.00** (United State Dollars Three Hundred Eighty Thousand Six Hundred Forty Only) strictly in accordance with KU standard format. this bank guarantee shall remain initially valid till the end of warranty period specified in the blanket purchase CONTRACT.

3.2. The performance bond shall be submitted to Finance Department with a copy to Contracts Department (ground floor, Procurement and Contracts Department).

4. **BPC ACKNOWLEDGEMENT**

4.1. Supplier should immediately sign & stamp the Blanket Purchase CONTRACT and return it to Contracts Department (ground floor, Procurement and Contracts Department).

4.2. In accordance to the performance bond clause, if required, the same should be submitted within 10 days of the blanket purchase CONTRACT date.

4.3. Failing to concur with the above mandatory requirements, shall negatively affect Supplier's post commitment performance rating.

5. **DELIVERY AND PAYMENT**

5.1. Full payment against this Blanket Purchase CONTRACT (BPC) shall be paid to supplier only after his full execution of all BPC terms & conditions including but not limited to supply of entire BPC quantities, installation, testing, commissioning, training, where applicable and / if any, manuals, documents and other components if required.

5.2. Any missing part, manual, component or s/w, if required in this BPC, shall lead to delay in payment till this missing part is fully rectified.

6. **WARRANTY PERIOD**

6.1. The warranty for the materials covered by this CONTRACT will be 3 years from the date of goods receipt note (GRN).

7. **DUTY EXEMPTION LETTER**

7.1. The goods covered by this blanket purchase CONTRACT are exempted from import duty. KU shall provide duty exemption letter to the Supplier addressed to Abu Dhabi customs department when requested against showing shipping documents. **8. DELIVERY NOTE**

8.1. Please arrange to send an email to Commercial Department a copy of delivery note duly signed by KU's concerned staff.

9. **LIQUIDATED DAMAGES/ BPC**

9.1. In the event of delay in delivery beyond the agreed delivery date for each call-up order, Supplier shall pay to KU by way of liquidated damages and not as a penalty, an amount calculated at the rate of one percent (1%) of the call-up order value for each week of delay (or pro rata on a daily basis) up to a maximum of ten percent (10%) of the call-up order. but in case of call up order with provision of (partial delivery allowed) where there are multiple line items, then the amount of deduction towards liquidated damages shall be calculated at the rate of one percent (1%) of the value of the undelivered item/s for each week of delay (or pro rata on a daily basis) up to a maximum of ten percent (10%) of the value of the undelivered items value.

10. **APPLICABLE LAW**

10.1. The laws of Abu Dhabi and the UAE shall apply to the construction, validity and performance of the CONTRACT by CONTRACTOR. Such laws include without limitation any ordinance, rule, decree, regulation or order of any Governmental Authority or Agency of Abu Dhabi or the UAE (State, National, Municipal, Local or other).

10.2. CONTRACTOR shall hold harmless, defend and indemnify INSTITUTE from and against any liability or penalty which may be imposed by Abu Dhabi or the UAE Governmental Authorities on INSTITUTE by reason of any alleged violation or violation of the laws of Abu Dhabi or the UAE arising out of CONTRACTOR's acts or omissions or of those of its employees while performing the WORKS.

11. **DELIVERY COORDINATION - (USER DEPARTMENT DETAILS)** 11.1.

For delivery coordination Supplier to contact:

Shiju Badarudeen
+971 2 312 3904
KU, Abu Dhabi, UAE

12. **GENERAL TERMS AND CONDITIONS**

12.1. In case and if any of the product in the award is discontinued or declared end of life/ sales before the delivery, the vendor is responsible for providing the replacement of next available model released with equivalent or better features with no pricing implications.

12.2. Original catalogues, maintenance and operation manuals must be furnished with each equipment.

12.3. Supplier shall least interrupt the operation of the sites and normal working in offices shall remain KU's priority during the installation work.

12.4. Supplier shall leave KU's property in good condition after completion of the work and restore it to the same condition in case of any damage.

12.5. KU have the right to keep defective hard disks when replaced

12.6. KU to review and approve the specification every 12 months

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Annexure A

Charges are as follows:

Cataloguing Original	$4.03 per record
Cataloguing CIP Upgrade	$4.03 per record
Cataloguing Derived	$4.03 per record
Cataloguing Shelf MARC	$0.76
For DVD MARC	$6.75 per record
For CD MARC	$16.07 per record

Processing charges:

Base Service Charge includes:	
Insert barcode (supplied by customer)	$0.12
Supply and fit barcode protector	$0.17
Total	$0.29
Supply and fit spine label	$0.23
Laminate Covering for paperback	$0.90
Super sleeve for hardback with dust jacket	$0.95
Other charges for reference:	
Apply spine label protector	$0.13
Supply & fit spine label protector	$0.17
Standard MARC records for Ebook Central	$0.00
MARC records for other Aggregator or Primary Publisher platforms	$1.25